

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 28, 2026 TIME: 8:30 A.M.

provided additional information regarding the delay; defendant did not file any supplemental papers. The Court is persuaded that the delay in seeking leave to amend was not dilatory and that no prejudice has been shown to defendant.

Defendant's motion for summary judgment is denied as moot.

No. 25CV02484

DOE v. CABRILLO COMMUNITY COLLEGE DISTRICT

**PLAINTIFF'S MOTION TO VACATE DISMISSAL AND FOR
RECONSIDERATION**

The motion is denied with prejudice. Defendant shall submit a form of judgment of dismissal for signature.

I. BACKGROUND AND MOTION

Self-represented plaintiff, John Doe, brings this action against defendant arising out of his attendance at, and alleged suspension from, defendant Cabrillo Community College District ("Cabrillo"). The second amended complaint ("SAC") alleges twenty causes of action.

Cabrillo filed a notice of vexatious litigant status with this Court on January 6, 2026. Cabrillo then filed a motion for an order staying this action pending the Court's action on defendant's vexatious litigant notice, or in the alternative, to dismiss. Cabrillo asserted that the plaintiff in this case, "John Doe" is Alex Yakovlev, an individual who was declared a vexatious litigant in April 2009 by the San Francisco County Superior Court. That court entered an order preventing Yakovlev from filing any litigation in California courts while self-represented without first obtaining leave of the presiding judge in the court where the proposed litigation was to be filed pursuant to Code of Civil Procedure section 391.7. Cabrillo maintained plaintiff filed this action in violation of San Francisco County Superior court order and failed to obtain the mandatory prefiling order within 10 days after Cabrillo filed its notice of vexatious litigant status, and so the action must be dismissed as a matter of law pursuant to Code of Civil Procedure section 391.7, subdivision (c).

Following the fully briefed motion and hearing, the Court granted Cabrillo's motion and found plaintiff, as a vexatious litigant, did not seek leave from the presiding judge, as required, before filing this action. Plaintiff also failed to obtain an order permitting filing after Cabrillo filed its Vexatious Litigant Notice. The Court dismissed this action with prejudice pursuant to Code of Civil Procedure section 391.7, subdivision (c).

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Plaintiff moves to vacate the order of dismissal on the grounds of faulty service, and in the alternative, for reconsideration.

II. LEGAL STANDARD

Within 10 days after service upon the party of written notice of entry of the order (extended for service) and based upon new or different facts, circumstances, or law, a party may make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. (Code Civ. Proc., §§ 1008, 1013.)¹

The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden under section 1008 “is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at [the hearing].” (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.) A party seeking reconsideration based on new or different facts, circumstances, or law must provide a satisfactory explanation for not presenting it earlier. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.)

III. DISCUSSION

The vexatious litigant statute makes clear that dismissal is automatic unless the plaintiff within 10 days of the filing of the notice obtains an order from the presiding judge permitting the filing of the litigation. (§ 391.7, subd. (c).) Yakovlev failed to apply for such an order. (Dismissal Order, at p. 5.) Plaintiff concedes he did not file for such an order. (Motion, at p. 10.)

As for plaintiff’s argument that he was not properly served, this Court has already found that service was proper. To reiterate, plaintiff consented to electronic service. An unrepresented party may expressly consent to receive electronic service either by serving notice on all parties and filing the notice with the court or manifesting affirmative consent through electronic means with the court or the court’s electronic filing service provider and concurrently providing the party’s electronic address with that consent for the purpose of receiving electronic service. (§ 1010.6; Cal. Rules of Court, rule 2.251.) A party “may withdraw consent at any time by completing and filing with the court the appropriate Judicial Council form.” (§ 1010.6.)

Plaintiff gave affirmative consent to electronic service by expressly requesting Cabrillo send all service and communications to his email address. (Matsuhara Decl., ¶ 3, Ex. A.) Plaintiff also chose electronic service for his filings with this Court. Only after service of the Vexatious

¹ All future statutory references are to the Code of Civil Procedure, unless otherwise stated.

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Litigant Notice did plaintiff withdraw his consent to electronic service, despite continuing to serve defendant electronically, while simultaneously forcing defendant to effect service at an undeliverable address. (Matsuhara Decl., ¶¶ 5-7, Ex. D.)

As for reconsideration, plaintiff's motion is based entirely on his argument that this Court failed to rule on his request for accommodation ("decide all pending motions on the written papers without oral hearing"), constituting a new fact and reversible error. The Court finds this argument collateral to the merits of the underlying motion, and therefore, not grounds for reconsideration. Further, plaintiff's accommodation request was untimely, making any error harmless. (See *Biscaro v. Stern* (2010) 181 Cal.App.4th 702, 708 ["[I]f the record before us led us to conclude that appellant had failed to satisfy the requirements of the rule and that his accommodation should have been denied as a matter of law, the trial court's failure to rule might be considered harmless."].) Finally, plaintiff's accommodation request, filed on April 20, 2026, was untimely per Cal. Rules of Court, rule 1.100(c)(3), which requires that "[r]equests for accommodations must be made as far in advance as possible, and in any event must be made no fewer than 5 court days before the requested implementation date." The hearing was set and held on April 24, 2026 and any accommodation request was due no later than April 17, 2026.

Plaintiff has presented no new facts, circumstances or law warranting any reconsideration of the motion.

Defendant's requests for judicial notice are denied; the Court need not take judicial notice of records in its own file.

No. 23CV01708

SEASCAPE RESORT OWNERS' ASSN. v. SEASCAPE RESORT, et al.

DEFENDANT SEASCAPE RESORT LTD'S DEMURRER AND MOTION TO STRIKE FIRST AMENDED COMPLAINT IN INTERVENTION BY MARCIA WALLIS, MARCIA CAPORN, AND NEELU MANRAO

The demurrer is sustained without leave to amend and the motion to strike is granted. The first amended complaint in intervention by intervenors Wallis, Caporn, and Manrao is dismissed.

I. BACKGROUND AND COMPLAINT

Intervenors Marcia Wallis, Marcia Caporn, and Neelu Manrao ("Intervenors") filed a first amended complaint in intervention ("FACI") against Seascape Resort Ltd. ("SRL," "Resort," and "defendant") which seeks seven causes of action: violation of Civil Code section 4600